

Day-16

वि. लो. से. आ.

B.P.S.C

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Q1 The Directive principles of State policy provide roadmap for welfare State, but their non justiciable Nature Limit their implementation. In Context, Critically examine Conflict between DPSP and FR Citing Landmark judgement and Constitutional amendments

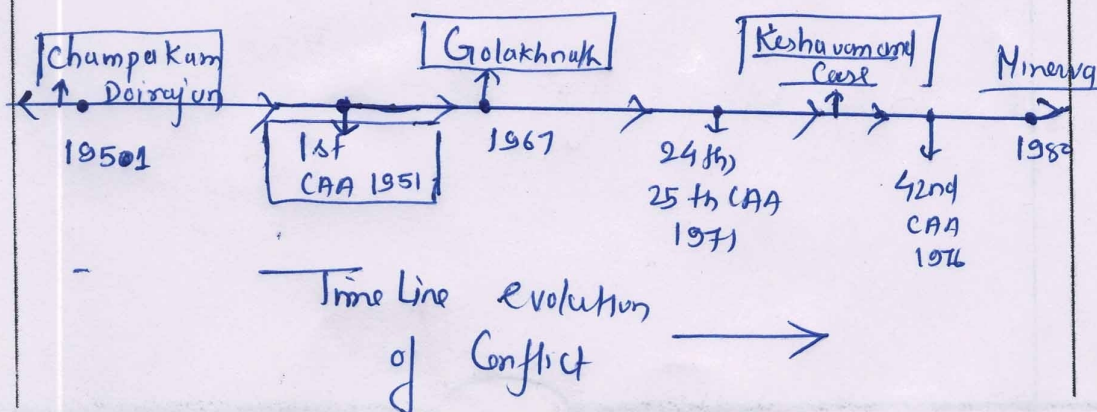
Ans "DPSP are life giving provision of Constitution"
LM Singhvi.

DPSP provision given in Part IV of Constitution which aims to Create welfare state by fulfilling basic needs of Citizen

It emphasis on providing social and economic justice given in preamble.

The Nature of DPSP is flexible and non justiciable. The need of state changes with Time - which are natural right of for social economic well being. John Lawks mention three things as Natural right is Liberty, property, Life

Conflict Between DPSP and FR.



1) Champakam Dorairajam Case (1951)

- Case challenged Caste based reservation in education
- Court declared reservation policy unconstitutional Violating Art 14 2 29

2) 1st Constitutional Amendment (1951)

- Amendment came in response of Case which include clause 4 in Art 15
- make special provision for socially and educationally backward.

3) Golaknath Case (1967)

- Court ruled that Fundamental right cannot be abridged to implement DPSP

4) 24th & 25th Amendment (1971)

↳ 24th Amendment Came in response of Golaknath Case

↳ granted parliament power to amend any part Constitution.

25th

↳ inserted Article 31C that protect Law enacted to give effect to DPSP on violation of Art (14, 19, 31)

5) Keshvanand Bharti (1976)

↳ Court Limited amending power of parliament under 368.

↳ It Can't amend "Basic Structure" of Constitution

↳ Struck down ^{Last provision of} Art 31(c) inserted
by 25th CAA.

↳ provision was ~~Entire~~ Curtailing
review law of 39(b) & 39(c)

6) 42nd Constitutional Amendment (1976)

↳ Came in response of Kesavanand Bhut
Case

↳ If Limited judicial review power
of Court

↳ most Controversial amendment
granting enormous power to parliament

7) Minerva Mill Case (1980)

↳ Ruled Constitution exist on balance
of between Fundamental Right & DPSP

↳ FR and DPSP are Two wheels of chariot

↳ Both are Complementary to each other.

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DPSP are governing principle
for social-economic well being of person.
Parliament has granted power to frame
law keeping balance between rights and
DPSP. Following recommendation of
Sapru Committee, It would maintain
harmony to provide social and economic
justice to people.

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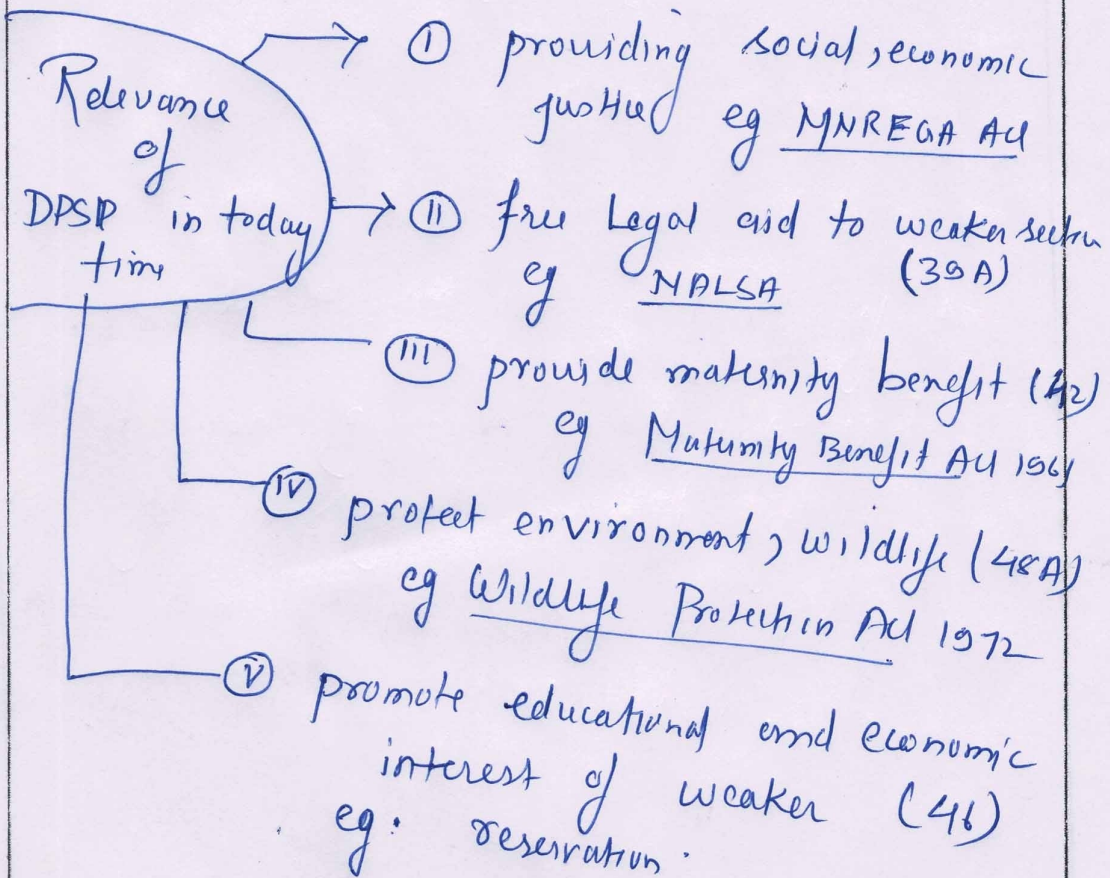
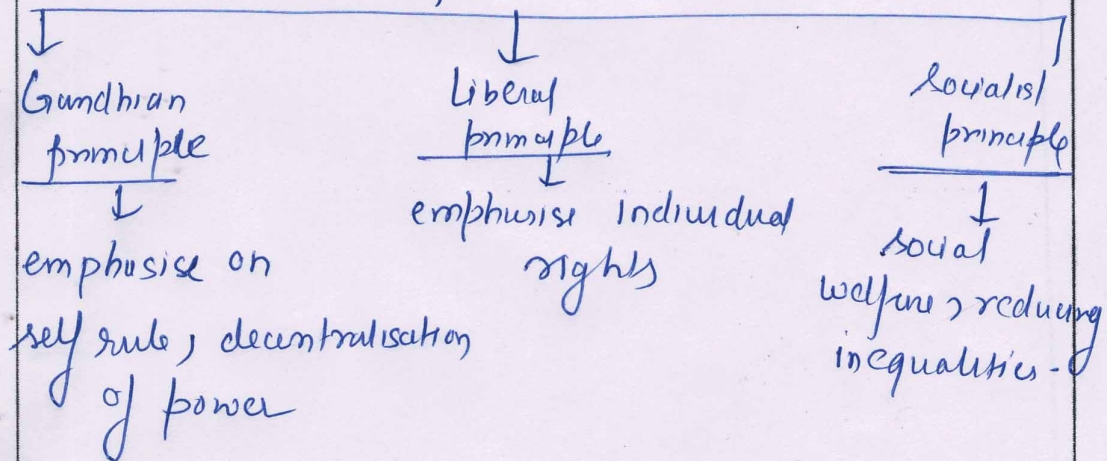
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Q2 With globalization, economic liberalisation and emerging social changes, do you think the Directive Principle remain relevant today? Critically assess their contemporary significance and suggest how they can be made more effective in modern policy framework.

Ans DPSP are Novel feature of the constitution given in article (36-51). It has great significance in today's time that aim to provide social and economic welfare of individual.

D Experts have Categorised DPSP into 3 Categories

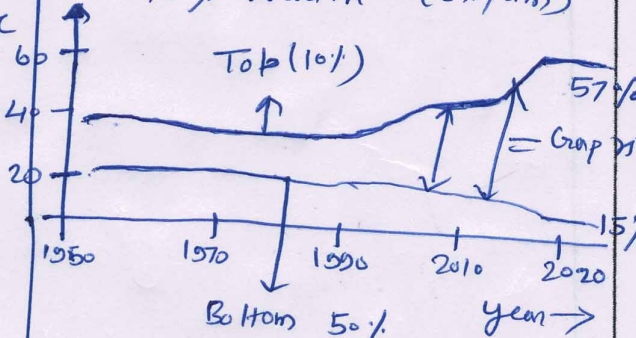


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Significance	Challenges
1) <u>Art 38(2)</u> $\Rightarrow$ State minimize inequalities in income, status etc	1) <u>Rising Income inequality</u> Top 1% Concentrated 40% Wealth (last year)  60 40 20 1950 1970 1990 2010 2020 Top (10%) Bottom 50% 57% 15% Gap rises year $\rightarrow$
2) <u>Art 40</u> $\Rightarrow$ Organise Village panchayat eg 73 CAA	1) Issue of <u>Sarpunch Pati Phenomena</u> specially in Bihar, Jharkhand etc
3) <u>Art 44</u> $\Rightarrow$ Uniform Civil Code for Citizen	11) Problem of Consensus Building on UCC
4) <u>Art 47</u> $\Rightarrow$ Duty to raise Nutrition and health	iv) 35% children are facing stunting malnutrition.

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v) <u>AR = 48(A)</u> Protecting environment forest, wildlife	v) 3rd Largest Contributor of Carbon emission of 3 billion metric ton
vi) <u>Art 50</u> → Separation of Judiciary from executive	vi) Incident of Conflict between organs. eg Judicial overreach.

Ways to make DPSP more effective

1) Defining Goal and Objective

clarity in goal provide faster implementation
and outcome.

2) Strategic Resource Allocation

→ Prioritizing key area focusing
on short term and long term
goal

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3) Implementation Through Legislation

↳ proper monitoring and evaluation
to track progress through
~~the~~ law.

4) Citizen Participation

↳ awareness on DPSP and involvement
of citizen in implementing

DPSP is holding
a significant role in society. It
shape policy framework of government
By Maintaining harmonious Balance
these Novel feature of DPSP would
create a inclusive Society dream by
BR Ambedkar.